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Lawmakers OK $50M to fight Trump plans

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Round Two of California's legal war with President Donald Trump is underway -- and now the state is freeing up more funds to back it up.

California lawmakers approved two bills setting aside $50 million for lawsuits and legal aid services ahead of anticipated battles with the Trump administration.

The legislation was approved along partisan lines on Monday afternoon following more than an hour of debate during a special legislative session called by Gov. Gavin Newsom in November following Trump's election, amending the current state budget. Lawmakers initially planned to pass the measures before Trump's inauguration, but negotiations slowed that plan.

"We do not trust President Trump," Assembly Speaker Robert Rivas said before a standing ovation from Democrats on the chamber floor Monday. "These radical plans, they threaten our residents. So we will do what is necessary to defend our residents."

Newsom signed two other special session bills last week allocating $2.5 billion for response and recovery from the Los Angeles fires.

One of the bills passed Monday will send an additional $25 million to the California Department of Justice, headed by Attorney General Rob Bonta, to cover legal expenses and lawsuits "to mitigate the impacts of actions taken by the federal government," the bill says. Lawmakers clarified that while the bill would authorize up to $25 million to the department, it would only be used if necessitated by litigation.

Assembly Member Rick Chavez Zbur, D-Los Angeles, said during a committee hearing that the bill was consistent with protecting California values. Zbur said that he and other lawmakers "hope we don't have to pick fights" with the Trump administration, but are concerned with actions taken over the past week.

"Over the past many months, we've heard chants of mass deportations. But once the yelling stops, the reality sets in," Senate President Pro Tem Mike McGuire, D-Geyserville, said during the Senate floor vote. "California is proud of our diversity. It is one of our biggest strengths. It is who we are, who we've always been."

An Assembly vote on the bills was planned for Thursday but was pushed back "to ensure none of the funds earmarked for the immigration services can be used to provide immigration-related legal services to criminals," KCRA reported.

Republicans, including Assembly Member Carl DeMaio, from San Diego, supported amending the bill to ensure the legal aid fund not use any money on immigrants with a criminal record. DeMaio said that lawmakers are "recklessly engaging in interference with the federal government." Assembly Member Bill Essayli, R-Corona, argued Trump has a mandate to remove "criminal illegal immigrants from our society, from our communities and returning them to their homes, where they belong."

Democrats said the amendment would go much further to restrict the fund, and rejected the changes.

Assembly Member Leticia Castillo, R-Riverside, proposed a similar amendment barring use of legal aid funds for immigrants with serious criminal records. Assembly Member Jesse Gabriel said that the amendment was

unnecessary given a letter he and state Sen. Scott Wiener submitted to the Assembly journal assuring that "none of the funding in SBX1 2 is intended to be used for immigration-related services for individuals with serious or violent felony convictions." Democrats rejected the amendment.

Bonta's office has already joined more than 20 other states in filing a lawsuit last week over a memo circulated by the Office of Management and Budget that would have frozen federal funding and caused chaos and backlash over how health care, education and other everyday programs would be impacted. The memo was rescinded on Wednesday, but confusion continued over whether federal funds would still be frozen after Karoline Leavitt, Trump's press secretary, wrote on X that it "is NOT a rescission of the federal funding freeze."

A federal judge agreed with the states' case and issued a temporary restraining order blocking the freeze.

Bonta also filed a lawsuit against the Trump administration over the president's order to end birthright citizenship, which has been guaranteed by the U.S. Constitution since 1868. Bonta joined with 17 other states and the city of San Francisco in the lawsuit. The order was temporarily blocked by a federal judge in Seattle in a separate lawsuit.

Bonta is also expected to defend California policies in court against efforts promised by Trump -- during his campaign and following his election -- to erode them. They include state laws that forbid local police from helping federal immigration authorities with deportations and its nation-leading car pollution rules. Trump has also threatened to withhold funding from California schools and federal disaster assistance over California's liberal policies.

Newsom, who originally called the special session to address concerns with the Trump administration, has been notably less critical of the president than other Democrats since meeting with him in Los Angeles to tour devastation from fires.

Trump said he'd withhold fire aid from the state unless California enacted voter ID policies.

Lawmakers pointed out that in Trump's first term, lawsuits from the Department of Justice brought in significant money -- and prevented loss of funds to the state -- that they said outpaced the cost of litigation. The department, then led by Attorney General Xavier Becerra, filed more than 100 lawsuits against the Trump administration and won about two-thirds of the cases.

The other bill sets aside another $25 million for legal aid organizations and immigration centers aimed at defending immigrants in California. The funding for nonprofits and outside groups was originally proposed by Senate Democrats, who reached a deal with Newsom and Assembly leaders on the two Trump-related bills.

"Senate Democrats are particularly proud to provide funding for providers of legal aid services, which know our communities' needs best and are best positioned to defend at scale the millions of individuals and families that will be impacted by the incoming Administration's extreme agenda," Wiener, D-San Francisco, said in a statement.

The legal aid bill's funding includes $10 million to be distributed to organizations by the Judicial Council, the policymaking body of the state courts system. Another $10 million will be set aside for grants, contracts and state operations for immigration-related services, while $5 million will head to the Judicial Council for expansion of its existing contract with the California Access to Justice Commission, an Oakland-based nonprofit.

"My wife is an elementary school principal," McGuire said on the Senate floor before the chamber's vote. "And never in her career did she think that there were going to be families who are now making plans to make sure that their kids are taken care of or safe if mom, dad or both are deported."

The special session initially included the $25 million bill for Bonta's office and a $500,000 bill proposed in the Assembly for case preparation by the Department of Justice, which was left out of the final deal. The Senate's request for $10 million for localities' legal battles was also cut in negotiations.

During discussions of the bills in the Senate, Republicans like state Sen. Rosilicie Ochoa Bogh of Yucaipa (San Bernardino County) tried to blame California's sanctuary state policies for the anxiety facing immigrants. Ochoa Bogh claimed that local law enforcement's inability to cooperate with the U.S. Immigration and Customs Enforcement allowed more undocumented immigrants without criminal records to be detained when ICE conducts operations.

Wiener, the author of the bills, said that Republicans blaming state law for the threats facing undocumented immigrants amounted to "opposite day."

Republican lawmakers said they voted against the bills because of public safety concerns. Wiener criticized their arguments, saying that tying criminality to immigrants was inaccurate, given undocumented immigrants' lower rate of crime than American-born citizens, as reported by the National Institute of Justice. He said that it was also ironic for Republicans to voice concerns with criminal immigrants walking free after Trump's recent pardons of Jan. 6 rioters, some of whom were convicted of violent crimes.

Wiener also said that public safety could deteriorate if undocumented immigrants, fearing deportation, do not report crimes or come forward as witnesses to law enforcement investigating crimes.

Democratic leaders also voiced plans to preserve California's protections for sending abortion drugs through the U.S. mail, along with strengthening rights for LGBTQ communities and bolstering environmental regulations, as part of the regular legislative session.

"We did a lot during the first Trump administration," Assembly Member Rebecca Bauer-Kahan, D-Orinda, told the Chronicle at the beginning of the session in December. "The question that I have is, have we closed all the loopholes?"

Assembly Member Jessica Caloza, D-Los Angeles, joined Democrats emotionally detailing the fears faced by undocumented immigrants in their communities. Caloza said that getting the funding to legal services organizations immediately -- through a special session -- could make the difference between someone being deported or getting help in time to stay in the country.

The session faced criticism from Republicans, who claimed that Democrats were more focused on "Trump-proofing" the state than passing relief for devastation from the wildfires in Los Angeles.

Two weeks ago, Newsom announced that the special session would expand to include passing $2.5 billion for emergency aid and additional wildfire preparedness in response to the ongoing Southern California fires.

It wasn't initially clear whether the wildfire aid legislation would be packaged with the Trump-related bills, but lawmakers ultimately agreed to introduce the bills separately, to the relief of Republican lawmakers who did not want to be forced into a decision between supporting wildfire victims and opposing Trump.

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